

BORROWED VEHICLE AGREEMENT

I, Sean McCann (hereinafter "Customer" or "Rental or Leasing Driver") for good and valuable consideration, including the temporary use of the below identified vehicle (hereinafter "Vehicle") owned by Dealer, agree to the following terms and make the following representations, which Customer asserts are true and correct:

Vehicle Description: Year 2025 Make Chevrolet Model Corvette Tag No. _____
Vehicle Identification No. 1G1YB3D40S5100898 DL#: 00000000 State _____
Insurer: _____ Policy #: _____
Agent: _____ Telephone #: _____

1. Customer currently maintains in full force and effect automobile liability, bodily injury and property liability insurance, and physical damage insurance (full comprehensive, collision and bodily injury/property damage coverage, pursuant to Florida's statutory requirements) with respect to Customer's currently owned automobile. Customer has provided to Dealer accurate information as to customer's insurance company, policy number and agent's name and telephone number.
2. Customer has a valid and unrestricted Florida driver's license and has provided to Dealer the driver's license number and photocopy of Customer's driver's license.

NOTICE OF SHIFTING OF INSURANCE LIABILITY

3. Customer understands, acknowledges, and agrees that pursuant to Florida Statute section 627.7263:
 - a. THE VALID AND COLLECTIBLE LIABILITY INSURANCE AND PERSONAL INJURY PROTECTION INSURANCE OF ANY AUTHORIZED RENTAL OR LEASING DRIVER IS PRIMARY FOR THE LIMITS OF LIABILITY AND PERSON INJURY PROTECTION COVERAGE REQUIRED BY SECTIONS 324.021(7) AND 627.736, FLORIDA STATUTES
 - b. Customer is contractually incurring a liability by agreeing to shift primary liability for this rental/leased/loaner Vehicle to the Customer's insurance carrier while such Vehicle is in Customer's possession and control.
 - c. Once Customer reads and signs this Agreement, Customer's automobile insurance becomes the primary liability insurance up to its full policy limits whether or not Customer's insurance policy contains a provision prohibiting such shifting of insurance coverage.
4. Customer has been given an opportunity to inspect the Vehicle and note directly below any damage to the Vehicle prior to taking possession of the Vehicle. If Customer fails or chooses not to inspect the Vehicle prior to entering into this agreement then Customer hereby knowingly, voluntarily and willingly waives Customer's right to claim and/or assert as a defense that the damage existed prior to taking possession of the Vehicle.

DAMAGE NOTATION BY CUSTOMER: _____

5. Customer agrees to return the Vehicle at or before the Return Time as specifically set forth below. If no Return Time is specifically identified, then Customer agrees to return the Vehicle to Dealer on or before 24 hours after taking possession of the Vehicle. Extensions of the Return Time shall only be valid if in writing from Dealer and signed by a Dealer manager. Customer agrees and acknowledges that after the Return Time, Dealer's consent to customer driving and possessing the Vehicle is revoked and Customer's use thereafter is unauthorized.
6. Customer agrees to indemnify and hold Dealer harmless and pay Dealer's costs to defend any and all claims arising out of or relating to Customer's operation and/or use of the Vehicle during all times in which the Vehicle was released from Dealer to Customer until such Vehicle is returned to the possession of Dealer. Customer shall assist Dealer and pay all costs to obtain release of the Vehicle if the Vehicle is impounded or immobilized while in Customer's possession or control.
7. Customer agrees to pay all traffic and parking tickets issued by any enforcing authority while the subject vehicle is in Customer's possession or control.
8. Customer agrees that the Vehicle will not be operated or moved outside a 50 mile radius from the Dealer's dealership.
9. Customer agrees that Customer shall not permit any other person to drive the Vehicle unless otherwise agreed to in writing by Dealer.
10. Customer agrees that Customer shall not use the Vehicle negligently or contrary to law and will not operate the Vehicle under the influence of alcohol and/or drugs or in any unsafe manner.
11. In the event of an accident, Customer agrees to immediately advise Dealer and to have a police report prepared at the scene and all information about the accident provided to Dealer.
12. Customer acknowledges and agrees that upon return of the Vehicle, a Dealer representative will inspect the Vehicle for any damage or excessive wear and tear. The Dealer representative will document the damage or excessive wear and tear and the costs to repair such items and diminution of value for the Vehicle and will thereafter forward a copy of this document to the Customer. Customer agrees to pay the estimated repair costs and diminution of value within 48 hours of Customer's receipt of the document.
13. Customer represents that Customer has not, in the past 3 years, had more than two minor moving traffic violations and Customer represents that Customer has never been convicted of any reckless driving offenses or driving while under the influence of an intoxicant.
14. In the event that the Customer has left another vehicle in Dealer's possession for either service or as a trade-in regarding a sale or lease transaction, Customer authorizes the Dealer to have a lien upon and retain possession of such vehicle for purposes of paying to Dealer any amounts owed by Customer to Dealer arising from this Agreement and if Customer does not pay to Dealer the amounts owed by Customer within 15 days of demand by Dealer. Customer authorizes Dealer to sell such vehicle and apply the proceeds of such sale to the amount owed by Customer to Dealer.
15. **Customer knowingly, willingly, voluntarily and IRREVOCABLY WAIVES ANY RIGHT TO TRIAL BY JURY on all issues so triable as to any and all claims or obligations based upon, arising out of or relating to this Agreement including, but not limited to, the shifting of insurance coverage for the subject vehicle to the Customer's insurance carrier.**

CUSTOMER HAS READ AND AGREES TO THE TERMS AND CONDITIONS CONTAINED WITHIN THE FRONT AND BACK OF THIS AGREEMENT.

Customer's signature _____ Date: 06/01/2025
Sean McCann _____ Customer's Phone No. (972) 679-2240
Print Name _____
Customer's Address: 2002 N FRONTAGE RD. PLANT CITY, FL 33563

TIME THAT VEHICLE IS TO BE RETURNED "Return Time": Date: _____ Time: _____
Level _____
VEHICLE RETURNED ON: Date: _____ Time: _____